

ASCII MASTER FLOW – PANEL 1/10: From Company sovereignty to constituent sovereignty, 1765-1950

1765 DIWANI: revenue power returns public accountability

|

1773 PARLIAMENTARY REGULATION

Regulating Act -> Governor-General of Bengal -> Calcutta Supreme Court

|

1781 JURISDICTION REPAIR -> 1784 DUAL CONTROL

Settlement Act Company administration + Board supervision

|

1813-1853 CHARTER TRANSFORMATION

monopoly opened -> Company de-commercialised -> legislation centralised

|

1858 CROWN RULE -> 1861-1892 ASSOCIATION WITHOUT RESPONSIBILITY

|

1909 COMMUNAL REPRESENTATION -> 1919 LIMITED RESPONSIBILITY

|

1935 FEDERAL BLUEPRINT + PROVINCIAL AUTONOMY

|

1947 SOVEREIGN CONSTITUENT POWER -> 1950 DEMOCRATIC CONSTITUTIONALISM

ASCII MASTER FLOW – PANEL 2/10: Who controlled whom: the imperial power hierarchy

BRITISH PARLIAMENT

- +-- 1773: begins statutory control over territorial Company rule
- +-- 1784: creates Board of Control for political supervision
 - | +-- BOARD OF CONTROL: civil, military and revenue direction
 - | +-- COURT OF DIRECTORS: Company administration and patronage
- +-- 1858: abolishes Company government
 - +-- SECRETARY OF STATE FOR INDIA: Cabinet responsibility
 - | +-- COUNCIL OF INDIA: advisory assistance
 - +-- GOVERNOR-GENERAL = VICEROY: Crown representative in India
 - +-- provincial governments

POWER SHIFT

Company charter -> parliamentary supervision -> Crown executive responsibility

LIMIT: accountability moved to Britain; responsible government in India did not follow.

ASCI MASTER FLOW – PANEL 3/10: 1773-1853: regulation, monopoly and centralisation compared

ACT	CONTROL / ECONOMY	INSTITUTIONAL RESULT
1773	Parliament regulates	GG of Bengal; Calcutta Supreme Court
1781	jurisdiction clarified	executive-revenue sphere protected
1784	political control separated	Board of Control; dual control
1813	India trade monopoly ends	sovereignty asserted; education grant
1833	all Company trade ends	GG of India; legislative centralisation
	Company becomes administrative	first Law Commission; no open competition yet
1853	charter not renewed for term	legislative-executive functions differentiated
	patronage principle weakened	competition route prepared

EXAM LINE: 1833 centralised the legislative state; 1853 specialised its machinery.

ASCII MASTER FLOW – PANEL 4/10: Representation without responsibility, 1861-1919

1861: NOMINATION

- +-- nominated Indian non-officials; portfolio system recognised
- +-- legislative decentralisation revived; no executive responsibility

|

1892: SCRUTINY

- +-- budget discussion and questions
- +-- indirect-election element; official majorities retained

|

1909: REPRESENTATION SEGMENTED

- +-- separate electorates for Muslims
- +-- larger councils; Indian on Viceroy's Executive Council
- +-- executive still not responsible to legislature

|

1919: RESPONSIBILITY DIVIDED

- +-- provincial dyarchy: reserved versus transferred subjects
- +-- central bicameralism; direct elections and limited franchise
- +-- ministers lacked decisive coercive and fiscal levers

ASCII MASTER FLOW – PANEL 5/10: The 1935 constitutional machine: promise and safeguards

GOVERNMENT OF INDIA ACT 1935

- +-- ALL-INDIA FEDERATION: provinces + princely states
 - | +-- never commenced because required princely accession failed
- +-- LEGISLATIVE DISTRIBUTION
 - | +-- Federal List 59 | Provincial List 54 | Concurrent List 36
 - | +-- residuary allocation vested in Governor-General
- +-- PROVINCES
 - | +-- dyarchy abolished -> provincial autonomy
 - | +-- ministers responsible to provincial legislatures
- +-- CENTRE: proposed dyarchy; not brought into operation
- +-- INSTITUTIONS: Federal Court 1937 | PSCs | bicameral provinces
- +-- SAFEGUARDS: discretion, special responsibilities and reserved powers

VERDICT: autonomy was enlarged inside an imperial veto structure.

ASCII MASTER FLOW – PANEL 6/10: 1935 inheritance: retained, transformed, rejected

1935 DEVICE

1950 TREATMENT

Three legislative lists	retained; redistributed under Seventh Schedule
Federal Court	transformed into Supreme Court with wider review
Provincial autonomy	retained as elected State government
Public Service Comms.	constitutionalised for Union and States
Emergency machinery	retained but subjected to constitutional procedure
Governor's office	retained; democratic responsibility replaces imperial command
All-India Services	retained as an integrating administrative instrument

REJECTED OR NORMATIVELY BROKEN

imperial sovereignty -> popular sovereignty
communal electorates -> common electoral citizenship
limited franchise -> universal adult suffrage
ruler safeguards -> enforceable rights and judicial review

ASCII MASTER FLOW – PANEL 7/10: 1947 bridge: dominion legality to republican authority

INDIAN INDEPENDENCE ACT 1947

- +-- British rule ends; India and Pakistan become Dominions
- +-- British parliamentary authority over the new Dominions ends
- +-- princely-state suzerainty lapses; accession is not automatic absorption
- +-- Constituent Assembly becomes sovereign constitution-maker
- +-- Assembly also acts as Dominion legislature

|

TRANSITIONAL GOVERNMENT

existing law and administration continue unless altered

|

26 NOV 1949: Constitution adopted

24 JAN 1950: members sign

26 JAN 1950: Constitution commences; republic replaces dominion status

BRIDGE: legal continuity prevented a vacuum; constituent power changed authority's source.

ASCII MASTER FLOW – PANEL 8/10: Colonial reform: official motive versus Indian pressure

OFFICIAL PROBLEM

Company abuse / fiscal crisis
administrative overload
nationalist representation
mass political pressure
communal bargaining

IMPERIAL RESPONSE

parliamentary regulation, not self-government
centralisation, codification, specialised services
councils, limited elections, controlled devolution
graded responsibility with vetoes and safeguards
separate electorates and group arrangements

INDIAN COUNTER-PRESSURE

associations -> Congress demands -> Home Rule -> mass movements -> negotiation

SYNTHESIS

British policy designed controlled adaptation to preserve authority.
Indian politics converted concessions into platforms for further claims.
Reform was neither a unilateral gift nor a linear march to democracy.

ASCII MASTER FLOW – PANEL 9/10: Historical-background close-option control board

CLAIM TO TEST

EXACT CONTROL

1773 created Governor-General of India	No: Governor-General of Bengal
1784 transferred India to Crown rule	No: dual control; Crown rule begins in 1858
1813 ended every Company monopoly	No: tea and China trade exceptions remained
1833 introduced open civil-service exam	No: principle opened; competition came later
1861 introduced elected representation	No: nominated Indian non-officials
1892 made executive legislature-dependent	No: scrutiny without responsibility
1909 began responsible government	No: representation widened, executive insulated
1919 put dyarchy at Centre	No: provincial dyarchy
1935 federation operated	No: federal part never commenced
1935 created RBI directly	RBI Act 1934; operations began in 1935
1947 automatically integrated princes	No: suzerainty lapsed; integration followed

ASCII MASTER FLOW – PANEL 10/10: Exact 10/15-mark architecture: evolution into the 1950 Constitution

10 MARKS / 150 WORDS

1. Thesis: colonial statutes built machinery; 1950 changed its sovereign basis.
2. Three phases: 1773-1858 control; 1861-1919 representation; 1935 blueprint.
3. Evidence: one exact Act-feature pair from each phase.
4. Pivot: 1947 transferred constituent authority and preserved legal continuity.
5. Verdict: structural continuity plus democratic rupture.

15 MARKS / 250 WORDS

1. Open with Diwani power-accountability mismatch.
2. Trace control: 1773 -> 1784 -> 1858.
3. Trace participation: 1861 -> 1892 -> 1909 -> 1919.
4. Explain 1935 lists, autonomy, institutions and safeguards.
5. Compare retained devices with rejected imperial principles.
6. Add Indian pressure versus British controlled adaptation.
7. Conclude: inheritance supplied instruments, not constitutional legitimacy.